

Theme 3: Negotiated Constitutional “Revolution”



Recap: The First Certification Judgment

- Once the final draft of the FC was submitted to the CC for certification, all political parties other than the ANC and PAC lodged objections to various provisions within the **New Text (NT)**
 - This was the result of a document which emerged via negotiations = not everyone was happy with the final outcomes
- The CC determined that **the Constitutional Principles** had to be interpreted **holistically** and in a manner that was not technically rigid to ensure all citizens could exercise their fundamental rights and freedoms
- The IC stated was **BOUND** by its own judgment.
 - It was final, nothing more could be said on the matter – ie no other court could challenge the provisions of the NT

Re Cap: The First Certification Judgment

- The CC evaluated the text in **two distinct ways**:
 - 1) Does the **basic structure** and premises of the text accord with that as envisioned by the Constitutional Principles
 - 2) Does **the contents** of the provisions align with the Constitutional Principles
- If it was determined that the basic structure did not align, the CC would not even bother with the substantive enquiry
- The structure **did align**, as such the judgment deals mostly with substantive objections

The First Certification Judgment

Some objections

- 1) Objection in relation to inclusion of **socio-economic rights within the Justiciable BOR**
 - Para 76-78
- 2) Objection in relation to no complete **separation of powers** between executive and legislature
 - Para 106-113
- 3) General **None Compliance with Various Principles**: Reasons why the court found certain provisions of the Constitutional text not complying with the Constitutional principles
 - Para 149-165

Court rejects the first draft...



The Second Confirmation Judgment

- Delivered 4 December 1996
- The Constitutional Court **Unanimously** certified the entered **Amended Text (AT)**, complied with 34 Constitutional Principles as required by the IC
- The Judgment focused on the various shortcomings identified in the first certification Judgment. Confirming they had been sufficiently addressed
- This Judgment was the **final legal hurdle** for South Africa's transition to full democracy
- Following the certification, the text was signed into law by President Nelson Mandela on **10 December 1996**, in Sharpeville.

Mandela Signs the Final Constitution



The Constitution, 1996.

- Formally enacted as: Constitution of the Republic of South Africa Act 108 of 1996
- Is now refereed to as: **Constitution of the Republic of South Africa, 1996**
- Drafted by the Constitutional Assembly,
- Certified by the Constitutional Court
- Took effect: 4 February 1997 (replacing 1993 Interim Constitution)

Important aspects of the 1996 Constitution

- Basic Rights for everyone contained in a Justiciable Bill of Rights
- Universal adult suffrage
- Constitutional Supremacy and the rule of law
- Non-racialism and non-sexism
- Co-operative government (national, provincial and local)
- Separation of powers (Legislative, executive and judicial authority)
- State institutions supporting constitutional democracy (Chp 9 institutions)
- Traditional leaders
- Languages

Constitutional Amendments

- **18 Amendments** since the Constitution was signed into law
- Amendments are used to update, refine, and strengthen the supreme law
- They are passed to **align the Constitution** with changing societal needs and norms

Constitutional Amendments Process *inter alia* :

- Special Majorities by NA and NCOP (depends on which section is being amended = what % needed)
- A bill must be gazetted in GG, at least 30 days before voted on
- Bill may NOT contain any other provisions other than those relating to the amendment
- Must go through a public participation process
- Must be referred to the president for assent

Constitutional Amendments: Some examples

- **1st Amendment Act 1997:** *Inter alia* extended amnesty cut-off dates related to the TRC
- **12th Amendment Act 2005:** Altered provincial boundaries, affecting local government structures and provincial management
- **18th Amendment Act 2023:** Officially recognised SASL as 12th Official Language
 - Sepedi, Sesotho, Setswana, siSwati, Tshivenda, Xitsonga, Afrikaans, ***South African Sign Language***, English, isiNdebele, isiXhosa and isiZulu.

Constitutional Amendments: Some examples

17th Amendment Act, 2012 – Assented to in 2013

- OVERHAULED the Court system
- Established a single high court division structure
- Confirmed CC is the highest court **in all matters** (not just constitutional matters)
- Designated the **Chief Justice of CC** as the **head of the Judiciary**
- Redefined the jurisdiction of the SCA

Transformative nature of the constitutions...

- The **Interim Constitution 1993**, and **the Final Constitution** addressed the injustices of apartheid, incorporating revolutionary provisions such as a justiciable Bill of Rights, **committing to transform society**
- The Constitution 1996, in particular, has been described as **“Transformative”**.

Transformative Constitutionalism:

- The South African Constitution, 1996 is seen as inherently transformative
- The central aim of the Constitution is to move from an unjust past to a just future
- Transformation is, therefore foundational to constitutional interpretation
- **The Key question:** What are the barriers to achieving transformation?

Defining Transformative Constitutionalism:

- No Single fixed definition
- Most famous is from Prof Kare Klare:

Transformative constitutionalism:

- “Long term project of constitutional **enactment, interpretation and enforcement** committed (not in isolation, but in the historical context of conducive political developments) **to transforming** [South Africa’s] **political and social institutions** and power relationship in a democratic, participatory, and egalitarian direction” (Kleyn et al page 52).

Defining Transformative Constitutionalism:

- **KK Characteristics of TC** : It is social, redistributive, caring, positive, at least partly horizontal, participatory, multicultural and self conscious about its historical setting and transformative role and mission (**De vos 1.4**)

Core Idea CJ P Langa:

- The Constitution is a “bridge” (think back to post-amble) between the unjust, divided past and a future based on rights, equality, and dignity
- **Transformation, therefore looks at making a commitment to change**

Transformative Constitutionalism

- ***Soobramoney v Minister of Health 1997 (CC) para 8:*** "We live in a society in which there are great disparities in wealth. Millions of people are living in deplorable conditions and in great poverty. There is a high level of unemployment, inadequate social security, and many do not have access to clean water or to adequate health services. ***These conditions already existed when the Constitution was adopted*** and a commitment to address them, and ***to transform our society*** into one in which there will be human dignity, freedom and equality, lies at the heart of our new constitutional order."
- Both backward and forward looking

Castaways Part 3: Transformative Constitutionalism

- You have developed a thriving society on your island, There has been a lot of development... however... it has not been equal
- Many of you are facing different structural problems within your island society

1) Land inequality:

- 20% of your population now controls 80% of the land
- Others are living in informal settlements
- Access to resources is unequal

2) Economically inequality

- A small elite controls all trade/resources
- Most people rely on informal or precarious work
- No social safety net exists

3) Vulnerable Groups

- Children are being exploited for labour
- No protections exist
- Families rely on this income

You **must diagnose** the inequality, **identify some** of the constitutional values at stake, **and transform** their system (What can you change, rights / polices / institutions, to help?)